

Smt. T.D.Gowramma vs Sri.M.V.Gangadharaiah on 31 July, 2023

Author: G.Narendar

Bench: G.Narendar

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NC: 2023:KHC:26652-DB

MFA No. 1682 of 2017

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 31ST DAY OF JULY, 2023

PRESENT

THE HON'BLE MR JUSTICE G.NARENDAR

AND

THE HON'BLE MR JUSTICE VIJAYKUMAR A. PATIL
MISCELLANEOUS FIRST APPEAL NO.1682 OF 2017 (MC)

BETWEEN:

SMT. T.D.GOWRAMMA

W/O M. V. GANGADHARAIAH

AGED 37 YEARS

R/O THANDAGA

DABBEGHATTA HOBLI

TURUVEKERE TALUK

TUMKURU DIST-572227

WORKING AT G.H.P.S. BYATHARA HOSAHALLI,

MAYASANDRA HOBLI,

TURUVEKERE TALUK.

...APPELLANT

(BY SRI. M. B. CHANDRACHOODA, ADVOCATE)

Digitally signed

by

MARKONAHALLI

RAMU PRIYA

Location: HIGH

COURT OF

KARNATAKA

AND:

SRI.M.V.GANGADHARAIAH

S/O LATE ERAIAH @ VEERANNA

AGED 38 YEARS

R/O YALACHIHALLI

KADABA HOBLI-572216

GUBBI TALUK, TUMKUR DIST.

WORKING AT G.H.P.S. HINDISKERE KAVAL,

C.S.PURA HOBLI, GUBBI TALUK.

...RESPONDENT

(BY SRI. NISHANTH S.K., ADVOCATE)

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THIS MFA IS FILED UNDER SECTION 28(1) OF FAMILY COURT ACT, AGAINST THE JUDGEMENT AND DECREE DATED 04.01.2017 PASSED IN M.C.NO.25/2014 ON THE FILE OF THE SENIOR CIVIL JUDGE, GUBBI, ALLOWING THE PETITION FILED UNDER SECTION 13 OF THE HINDU MARRIAGE ACT, FOR DISSOLUTION OF MARRIAGE.

THIS APPEAL, COMING ON FOR HEARING, THIS DAY,
VIJAYKUMAR A. PATIL J., DELIVERED THE FOLLOWING:
JUDGMENT

This appeal is filed under Section 28(1) of the Hindu Marriage Act, 1955 against the judgment dated 04.01.2017 passed by the Senior Civil Judge, Gubbi, (for short, 'the Family Court') by which the petition filed by the respondent-husband under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 seeking dissolution of marriage on the ground of the cruelty and desertion was allowed.

2. Brief facts giving rise to filing of this appeal are that the marriage between the appellant and the respondent was solemnized on 04.06.2009 at Basaveshwara Kalyan Mantap, Turuvekere Town as per their customs and rituals. It is averred that at the time of marriage the appellant and respondent were working as Teachers and they hail from agricultural family. It is averred that after the marriage, the appellant-wife joined NC: 2023:KHC:26652-DB respondent-husband in his matrimonial home and she has stayed only for a period of 15 days and thereafter misunderstanding arose between the appellant and respondent and the appellant-wife left the matrimonial home without listening to anybody's request and started residing with her parents. It is further averred that the respondent-husband has convened panchayats several time by requesting the appellant-wife to rejoin the matrimonial home and she has failed to do so, hence, the respondent issued legal notice to the appellant asking her to rejoin the matrimonial home. Despite service of notice, appellant failed to rejoin the respondent-husband. It is pleaded that the appellant, with an intention to cause trouble to the respondent and his family members, has filed false criminal case in Crime No.33/2011 for the offence punishable under Sections 498A, 506 of IPC read with Sections 3 and 4 of the Dowry Prohibition Act, the said case has resulted in acquittal of the respondent-husband and his mother. It is further pleaded that on 24.08.2011 at about 5.30 p.m. the appellant along with her relative have come to the respondent's house and insisted him to pay maintenance and they gave life threat to the respondent, hence, he has filed complaint which was registered NC: 2023:KHC:26652-DB as Crime No.181/2011. It is also pleaded that the appellant has filed O.S.No.205/2011 against the respondent believing that the respondent is going to get second marriage and got injunction. It is averred that on 30.03.2012, the appellant filed police complaint which was registered as Crime No.80/2012 by Turuvekere Police alleging that the respondent-husband has threatened the appellant-wife to withdraw the criminal cases filed by her. It is further averred that these acts of the appellant-wife has caused physical and mental cruelty to the respondent and also spoiled his reputation in the Teachers' community and the appellant has deserted the respondent without any justifiable ground.

3. The appellant entered appearance before the Family Court by filing the statement of objections. The appellant-wife has admitted the relationship between the respondent and the date of solemnization of marriage, however, it is denied that she has filed false complaint against the respondent-husband for dowry harassment. It is averred that the respondent was in the habit of demanding dowry and always used to threaten the appellant and her family members for additional dowry. It is further averred that she has filed a criminal case as she could NC: 2023:KHC:26652-DB not bear the torture of demand of dowry by the respondent and on 08.02.2012 the respondent along with other person came near the Government Primary school when the appellant was walking and gave life threat to her. If she could not give consent for divorce, which has caused mental pain to the appellant. Hence, she sought for dismissal of petition.

4. The Family Court based on the pleadings, framed the issues and recorded the evidence. The appellant examined herself as RW1 and respondent examined himself and PW1 and got marked the documents as Exs.P-1 to P-8. The Family Court, on appreciation of evidence, has allowed the petition filed by the respondent-husband by dissolving the marriage taken between the appellant and respondent on 04.06.2009. In the aforesaid factual background, this appeal has been filed.

5. Sri.M.V.Chandrachud, learned counsel appearing for the appellant-wife submits that the Family Court has failed to consider the evidence on record in its proper perspective. The respondent-husband has failed to prove the grounds of cruelty and desertion before the Family Court, however, the Family Court has accepted the plea of the respondent-husband and NC: 2023:KHC:26652-DB dissolved the marriage. It is submitted that the Family Court has committed an error in not appreciating the fact that the appellant-wife has categorically stated in her evidence that she is ready to join the respondent and ready to lead the marital life. It is further submitted that the Family Court has incorrectly interpreted the evidence of the appellant, she has stated that the respondent-husband intend to have second marriage, hence, she is not ready to give divorce and on the other hand, she is ready to join the matrimonial home and lead marital life with the respondent-husband. However, the Family Court has recorded the finding that the appellant is not ready to lead marital life with respondent; the said finding is contrary to evidence on records. It is also submitted that the respondent has failed to plead and prove the grounds of cruelty and desertion before the Family Court, despite the same, the Family Court has allowed the petition. Hence, he seeks to allow the appeal by setting aside the impugned judgment and decree passed by the Family Court.

6. Per contra, Sri.Nishanth S.K., learned counsel for the respondent-husband supports the impugned judgment and decree passed by the Family Court and submits that the NC: 2023:KHC:26652-DB respondent has pleaded and proved before the Family Court that the appellant-wife has caused physical and mental cruelty to the respondent-husband by filing various cases against him and without any justifiable reason the appellant-wife has deserted the respondent-husband. Hence, he seeks to dismiss the appeal.

7. We have heard the learned counsel for the appellant, learned counsel for the respondent, perused the memorandum of appeal and trial Court records.

8. The parties to the proceeding do not dispute that their marriage was solemnized on 04.06.2009 as per the Hindu customs and rituals. The respondent-husband was before the Family Court seeking for dissolution of marriage on the ground of cruelty and desertion alleging that the appellant-wife has joined the matrimonial home and stayed only for a period of 15 days and thereafter she has started living with her parents. It is also not in dispute that both the appellant as well as the respondent are working as Teachers in Government School. It is also not in dispute that the respondent-husband has specifically pleaded that he had convened panchayats on NC: 2023:KHC:26652-DB several occasions and requested the appellant-wife to rejoin the matrimonial home and when she failed to rejoin, he was compelled to issue legal notice to the appellant on 27.09.2010 calling upon the appellant to rejoin the matrimonial home. The said notice was served upon the appellant, but she has neither replied to the notice nor joined the matrimonial home. It is also not in dispute that the appellant-wife has filed criminal case against the respondent alleging demand of dowry, the said case is numbered as C.C.No.341/2011 for the offences punishable under Sections 498A, 506 of IPC read with Section 3 and 4 of Dowry Prohibition Act and the said case has resulted in acquittal of respondent-husband. The appellant initiated two other proceedings i.e., crime No.80/2012 and O.S.No.205/2012, against the respondent. The conduct of appellant clearly goes to show that she has filed various cases against the respondent-husband only with an intention to cause trouble and harassment, as she has led married life with respondent only for 15 days. The Family Court has recorded a categorical finding that the appellant being one of the prosecution witness in C.C.No.341/2011 has failed to establish that there was a demand of dowry and cruelty by the NC: 2023:KHC:26652-DB respondent-husband. The said finding of the Family Court is based on the material evidence on record and does not call for any interference in this appeal as the said finding is neither perverse nor contrary to the material on record.

9. It will be useful to refer the decision of Hon'ble Supreme Court in the case of K.Srinivas vs. K.Sunitha reported in (2014) 16 SCC 34, wherein paragraph Nos.5 and 7 of the judgment reads as follows:

"5. The respondent wife has admitted in her cross- examination that she did not mention all the incidents on which her complaint is predicated in her statement under Section 161 CrPC. It is not her case that she had actually narrated all these facts to the investigating officer, but that he had neglected to mention them. This, it seems to us, is clearly indicative of the fact that the criminal complaint was a contrived afterthought. We affirm the view of the High Court that the criminal complaint was "ill advised". Adding thereto is the factor that the High Court had been informed of the acquittal of the appellant husband and members of his family. In these circumstances, the High Court ought to have concluded that the respondent wife knowingly and intentionally filed a false complaint, calculated to embarrass and incarcerate the appellant and seven members of his family and that such conduct unquestionably constitutes cruelty as postulated in Section 13(1)(i-a) of the Hindu Marriage Act.

7. In these circumstances, we find that the appeal is well founded and deserves to be allowed. We unequivocally find that the respondent wife had filed

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NC: 2023:KHC:26652-DB a false criminal complaint, and even one such complaint is sufficient to constitute matrimonial cruelty."

10. Keeping in mind the aforesaid enunciation of law, we are of the considered view that the appellant-wife has filed false criminal cases against the respondent-husband only with an intention to harass and cause embarrassment in the society, the said act of the appellant is a mental cruelty on the respondent-husband. On close scrutiny of the pleading and evidence on record, it is evident that the appellant has only denied the averments made in the petition, however, there is no cogent and acceptable explanation on the part of appellant for initiation of various proceedings against the respondent- husband. The conduct of the appellant-wife not joining the respondent-husband despite the request of the respondent- husband to join the matrimonial home and even after service of legal notice she has failed to join the matrimonial home, clearly goes to show that the appellant-wife has no intention to lead marital life with respondent-husband. The act of non-joining the matrimonial home without any justifiable ground on the

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NC: 2023:KHC:26652-DB part of appellant-wife amounts to desertion and also amounts to ending the co-habitation permanently.

11. The marriage between the appellant and the respondent was solemnized on 04.06.2009 and it is specifically pleaded by the respondent-husband that the appellant-wife has stayed only for a period of 15 days in the matrimonial home and thereafter she has started residing with her parents. The appellant-wife has chosen to file the police complaint on 30.03.2012 alleging the demand of dowry. The time gap between the appellant-wife leaving the matrimonial home, her duration of stay in the matrimonial home clearly demonstrates that initiation of criminal proceedings against the respondent- husband is abuse of process of law only with an intention to cause harm to the respondent-husband.

12. The respondent-husband has proved the grounds of cruelty and desertion before the Family Court and the Family Court, on meticulous appreciation of evidence on record, has recorded the finding that the appellant-wife has caused mental cruelty and deserted the respondent-husband without any justification. The said finding of the Family Court is based on

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NC: 2023:KHC:26652-DB the pleading, evidence on record and the findings recorded are neither perverse nor contrary to law and facts calling for interference in this appeal.

13. For the aforementioned reasons, we do not find any merit in this appeal. Accordingly the appeal fails and is hereby dismissed.

No order as to costs.

Sd/-

JUDGE Sd/-

JUDGE BSR